ONLINE SPEECH

Thailand v. Wuth Boonlert and Samak Donnapee

9 October 2026

CASE FOLLOW-UP REPORT

Procedural developments and verified outcomes

Independent research based on user-supplied TrialWatch materials

ABOUT THIS UPDATE

This independent research update follows the user-supplied TrialWatch material. It is not issued by the Clooney Foundation for Justice, TrialWatch, or the original authors. The earlier report supplies the historical baseline; later developments are supported by the sources cited here.

Jurisdiction	Thailand
Original report	July 2020
Dated update covered	26 September 2023
Research cutoff	9 October 2026
Historical assessment	TrialWatch grade C (original report only)

SCOPE AND METHOD

Research considered public court records, enacted legislation, lawyers and subjects, press-freedom organizations, United Nations materials and attributable reporting available through 9 October 2026. Publication dates and event dates are distinguished. Where judgments or current custody records could not be obtained, the conclusion is expressly qualified. No direct interviews or new trial monitoring were conducted for this update.

An acquittal, quashing order, pardon, sentence completion, bail decision and custody transfer have different legal effects. A reported intention to litigate is separated from an actual filing. Unresolved questions are listed below. Historical TrialWatch grades retain their original attribution; this update does not assign a new grade.

CONTENTS

Executive Summary

Background and Procedural History

Subsequent Developments

Legal and Procedural Assessment

Conclusion and Outstanding Records

Sources and References

EXECUTIVE SUMMARY

LATEST VERIFIED POSITION

Acquittal upheld on appeal; later separate defamation case involving Wuth settled

The latest verified decision in the original Chaiwat prosecution is the Court of Appeal's 22 December 2020 acquittal. The 26 September 2023 event concerns a distinct case involving Wuth and another defendant, not Samak. No Supreme Court disposition or certificate of finality in the original proceedings was verified.

Thailand's response to UN special procedures confirms that the Court of Appeal upheld both acquittals on 22 December 2020. The prosecutor did not appeal; private co-plaintiff Chaiwat did. [2]

The latest dated personal follow-up is a separate defamation settlement involving Wuth and Suracha Boonyeim on 26 September 2023, documented by CFJ in September 2024. It does not concern Samak. [4]

2. Government of Thailand, Unknown; document contain.... Thailand's response to Joint Communication AL...

4. Clooney Foundation for Justice..., September 2024. Thailand SLAPPs Report

BACKGROUND AND PROCEDURAL HISTORY

The supplied July 2020 report concerns a criminal-defamation prosecution arising from Facebook commentary about alleged land-related misconduct by an official. Samak was accused of publishing the posts, while Wuth was accused of sharing them without adding commentary. The allegedly defamatory passages did not expressly name Chaiwat. The charge was brought under section 328 of Thailand's Criminal Code, and the proceedings also exposed the defendants to a private compensation claim. Both defendants were human-rights defenders whose work addressed Karen communities and land rights. [1]

TrialWatch monitored hearings between September and November 2019. On 18 November 2019, the trial court acquitted both defendants of all charges and rejected the co-plaintiff's compensation demand. The report nevertheless distinguished an acquittal from a prosecution free of rights concerns: the defendants had already borne the burdens of criminal proceedings over public-interest speech. [1]

Lionel Blackman, the report's TrialWatch expert, assigned the original grade C. The assessment described generally fair trial procedures but questioned the prosecution and acceptance of a weak criminal-defamation case against activists. Its concern was not that the defendants had received prison sentences; they had been acquitted. Rather, the report addressed the potential chilling effect and misuse of criminal process. This follow-up retains that historical attribution and assigns no new grade. [1]

KEY PROCEDURAL DATES

18 November 2019	Trial court acquitted Wuth and Samak and rejected compensation in the original case. [1]
14 July 2020	CFJ published its statement accompanying the TrialWatch assessment. [3]
22 December 2020	Court of Appeal upheld the original acquittal, according to Thailand's response to UN special procedures. [2]
26 September 2023	Separate Surapon Naknakorn defamation case against Wuth and Suracha Boonyeim settled. [4]

1. User-supplied original report, July 2020.
2. Government of Thailand, Unknown; document contain.... Thailand's response to Joint Communication AL...
3. Clooney Foundation for Justice, 14 July 2020. Statement on the Trials of Wuth Boonlert and...
4. Clooney Foundation for Justice..., September 2024. Thailand SLAPPs Report

SUBSEQUENT DEVELOPMENTS

The government's account describes the appellate court's acceptance of good-faith public criticism. This is a government response hosted by UNESCO, not the judgment itself. Although its title names an April 2020 UN communication, its contents extend into 2021; its precise publication date is unstated. [2]

The separate case documented in CFJ's 2024 report concerned 2014 posts criticizing Thairath reporter Surapon Naknakorn's alleged conflict of interest. A complaint followed in September 2020 and an indictment in September 2022. The 2023 settlement provided for withdrawal of civil and criminal claims in exchange for an apology, publication of that apology, and 100,000 baht compensation. CFJ reports that the defendants accepted because they no longer wished to continue going to court. Different speech, complainant, and co-defendant establish that this was another proceeding. [4]

LEGAL AND PROCEDURAL ASSESSMENT

The following assessment draws inferences from the cited record. It does not represent a new court finding or TrialWatch grade.

appellate affirmation is significant, but the available account does not establish every subsequent procedural step or unappealable finality. [2]

the separate settlement concerns litigation burden; it supplies no evidence that Samak was prosecuted again or the original acquittal disturbed. [4]

2. Government of Thailand, Unknown; document contain.... Thailand's response to Joint Communication AL...

4. Clooney Foundation for Justice..., September 2024. Thailand SLAPPs Report

CONCLUSION AND OUTSTANDING RECORDS

Appellate acquittal is verified; subsequent finality needs documentation. The separate settlement changes neither original defendant's documented trial outcome. [2] [4]

RECORDS NOT VERIFIED

1. Obtain the 22 December 2020 appellate judgment and any record of a Supreme Court petition or certificate of finality.

2. Confirm whether either original defendant obtained compensation or another remedy for the costs of this prosecution.

3. Obtain a current, case-specific account from counsel or the defendants; the 2023 settlement does not establish either person's circumstances in October 2026.

Failure to locate an update leaves a gap in the available evidence; it does not establish that no later proceeding or change occurred. Any present-status claim should be read with the dated scope stated in the executive summary.

2. Government of Thailand, Unknown; document contain.... Thailand's response to Joint Communication AL...

4. Clooney Foundation for Justice..., September 2024. Thailand SLAPPs Report

SOURCES AND REFERENCES

Numbered references correspond to superscript citations and page notes. Web sources were consulted for this research through 9 October 2026. Original reports are local user-supplied files. Each link opens the cited source.

1. **Original user-supplied report on Thailand v. Wuth Boonlert and Samak Donnapee**
TrialWatch / original report authors. July 2020.
Local PDF: government-of-thailand-chaiwat-limlikhitaksorn-v-wuth-boonlert-samak-donnapee.pdf
Coverage: Historical case baseline and original assessment

2. **Thailand's response to Joint Communication AL THA 4/2020 dated 21 April 2020**
Government of Thailand; hosted by UNESCO World Heritage Centre. Unknown; document contains events through 26 March 2021.
Read source at whc.unesco.org
Coverage: Pages 2-3: private appeal rejected on 22 December 2020; prosecutor did not appeal.

3. **Statement on the Trials of Wuth Boonlert and Samak Donnapee in Thailand**
Clooney Foundation for Justice. 14 July 2020.
Read source at cfj.org
Coverage: Publication of the original assessment and advocacy following acquittal.

4. **Thailand SLAPPs Report**
Clooney Foundation for Justice and Debevoise & Plimpton LLP. September 2024.
Read source at cfj.org
Coverage: Pages 38-39: distinct Wuth/Suracha case; settlement on 26 September 2023.